ARIZONA DEPARTMENT OF HEALTH SERVICES

LICENSING

April 3, 2023

Arizona Wellness Collective 3, Inc
Conor Counselman
1225 W. Main St.
Ste. 101-102
Mesa, AZ 85202

RE: INSP-0016425

Dear Mr. Counselman:

The purpose of this letter is to inform you that during a recent compliance inspection, inspection no. INSP-0016425, conducted on February 15, 2023 by the Arizona Department of Health Services ("Department"), the Department cited violations in one or more areas that are repeat violations of the same statutes or rules.

The Statement of Deficiencies ("SOD"), sent on February 24, 2023, describes the statute and rule violations cited. Because the case has been referred to the Enforcement Team, and the Informal Dispute Resolution ("IDR") period has passed or the IDR has been reviewed and the citations were upheld, the Department is requesting $2,000.00 in Civil Money Penalties ("CMP"), along with a written plan of correction ("POC") for the violations. The CMP and POC must be submitted through the Facility Licensing Portal by May 15, 2023.

Please review, sign and return the enclosed CMP agreement forms to the Department by April 14, 2023.

If you have any questions, please call our office at (602) 364-0857.

Sincerely,

Jason Swank
Compliance Manager
Bureau of Marijuana Licensing

Enclosure

ARIZONA DEPARTMENT OF HEALTH SERVICES
PUBLIC HEALTH LICENSING SERVICES
BUREAU OF MARIJUANA LICENSING

ENFORCEMENT MEETING NOTIFICATION OF RIGHTS

Facility Name:	License#	PO/BM:
Arizona Wellness Collective 3, Inc	00000119DCKO00583347	Conor Counselman

Please initial after each section.

1. I understand that I have the right to reject the proposed resolution and may refuse to sign this Agreement. __CAC____(initials)

2. This Agreement has been reviewed and approved by the Assistant Director. If this Agreement is changed, it will be returned to the Assistant Director for approval. __CAC___(initials)

3. I understand that if I do not enter into an agreement at this time, the Program will refer this matter to Public Health Licensing Services ("Licensing") Enforcement Team and a legal order may be prepared and sent to me. __CAC____(initials)

4. I understand that I have due process rights and can request a hearing before the Office of Administrative Hearings regarding any legal order issued by the Department's Director. __CAC_____(initials)

I hereby acknowledge that I have discussed the above statements with the Department and understand my rights with regard thereto.

Licensee: _____ Date: __05/12/2023_____
(Licensee's signature)

ENFORCEMENT MEETING AGREEMENT FORM

Facility Name:	License#	PO/BM:
Arizona Wellness Collective 3, Inc	00000119DCKO00583347	Conor Counselman

Department concern noted: The department is requesting $2,000.00 in Civil Money Penalties (CMP). Along with a written plan of correction for the violations.

Agreement:

(initials) CAC Licensee agrees to pay civil money penalties in the amount of.

(initials) CAC Licensee understands to not be in substantial compliance could result in further enforcement action up to and including denial of the renewal application.

	PLEASE PRINT NAME	SIGNATURE	DATE
Licensee:	Conor Counselman		05/12/2023
Deputy Assistant Director:	Megan Whitby	Megan Whitby	05/15/2023
Assistant Director:	Tom Salow	Thomas Salow	5/16/23
Compliance Manager:	Jason Swank	Jason Swank	5/15/2023

ARIZONA DEPARTMENT OF HEALTH SERVICES
PUBLIC HEALTH LICENSING SERVICES
BUREAU OF SPECIAL LICENSING

Conor Counselman
1911 W. Broadway Rd. 23
Mesa, AZ 85202
License # 00000119DCKO00583347

CIVIL PENALTIES

Statute/Rule	Violations	Penalty Assessment	Penalty Amount
A.A.C. R9-17-316(D)(1)	02/15/2023	Enforcement Schedule, Inventory, Health and Safety	$2,000.00

Total			$2,000.00

Payments are to be made in the Facility Licensing Portal and shall be made within thirty (30) days from the execution date of the attached Enforcement Agreement unless an alternate payment schedule is arranged.

1. To view Statements & Payments, navigate to the Statements & Payments tab
2. View information associated with the invoice and quickly pay an invoice by selecting a radio button for the appropriate amount
3. Click Submit Payment to send payment to ADHS
4. Click on the Invoice # to view additional details related to the invoice
5. The Invoice Detail page will appear with additional information related to the invoice
6. View the Payment Schedules in the lower portion
7. Pay an invoice by selecting the radio button for the appropriate amount
8. Once a radio button is selected, the Submit Payment button will turn from gray to red, and payment can be submitted
9. If Other is selected, the amount can be typed into field
10. Click Submit Payment to be directed to the checkout screen
11. After the Submit Payment box is selected, the Payment Amounts Selected pop-out will appear, click Next to continue processing the payment
12. Enter payment information at Checkout
13. Once the payment has been submitted, the paid amount will appear on the invoice as Paid
14. The Balance will reflect the outstanding balance that has not been paid on the invoice
15. The installment that has been Paid will move to the bottom and other payments will show by order of Due Date